

IN THE SUPREME COURT OF INDIA

Criminal Appeal No. 301/2024

Date of Decision: 20-02-2024

State of Karnataka ... Appellant

VERSUS

Ramesh Kumar ... Respondent

FACTS OF THE CASE:

1. Conviction challenged under Section 302 vs Exception 4 to Section 300 of Indian Penal Code, 1860.

ISSUES:

1. Sudden fight without premeditation in heat of passion.

REASONING & DECISION:

Offence falls under Section 304 Part I IPC due to sudden quarrel.

RATIO DECIDENDI:

Absence of premeditation mitigates offence from murder to culpable homicide.

DECISION:

Sentence modified to 10 years rigorous imprisonment.